

		compel further responses and no separate statement was filed, the court is unable to evaluate the objections. The motion pursuant to Code of Civil Procedure section 2030.290 therefore is DENIED. Counsel for Petitioner is ordered to give notice.
8.	<i>In Re:</i> <i>Intelifund, LLC</i> <i>2026-01572926</i>	Before the court is a petition by petitioner Intelifund, LLC (Petitioner) in which it seeks an order approving the transfer of structured settlement payment rights by and between payee and real party in interest Marquez Balingit (Payee) and Petitioner pursuant to California Insurance Code section 10134 et seq. For the reasons set forth herein, the petition is DENIED WITHOUT PREJUDICE. Petitioner seeks approval of an agreement for Payee to transfer his right to receive a single lump sum payment of \$140,000 on April 30, 2028, in exchange for a current lump sum payment of \$100,374.22. The payment right Payee agrees to transfer has a discounted present value of \$126,710.76. Accordingly, Payee would receive 79.21 percent of the discounted present value and the transaction would have an equivalent interest rate of 18.11 percent. Unfortunately, there are a number of deficiencies with the current petition that require it to be denied without prejudice to a new petition. There is no annuity contract, qualified assignment and release, or settlement agreement attached to the petition. Insurance Code section 10139.5(f)(1)(E)-(G) require these documents to be attached to the petition. Section 10139.5(f)(1)(H) provides an exception as follows: "If a copy of a document described in subparagraph (E), (F), or (G) is unavailable or cannot be located, then the transferee is not required to attach a copy of that document to the petition or notice of the proposed transfer if the transferee satisfies the court that reasonable efforts to locate and secure a copy of the document have been made, including making inquiry with the payee. If the documents are available, but contain a confidentiality or non-disclosure provision, then the transferee shall summarize in the petition the payments due and owing to the payee, and, if requested by the court, shall provide copies of the documents to the court at a scheduled hearing." Here, the documents are not provided and a sufficient showing to justify that failure is not provided either. Further, although Petitioner states "A copy of the annuity contract, qualified assignment and release, and settlement agreement is attached to this Petition as Exhibit 7" (Petition

		at 6:3-4), the document attached as Exhibit 7 is a copy of an Order Approving Compromise of Minor's Claim filed in the underlying action on April 10, 2001. That order further undermines the petition because it contradicts the other representations about the underlying settlement and describes a different transaction than what Petitioner and Payee represent. For example, the petition states a single lump sum of \$140,000 is being transferred but the order states there was to be a single lump sum payment of \$100,000 to be made to Payee when he turned 25. Not only are the amounts inconsistent, but Payee also states he is currently 28 and therefore the payment described in the order already should have been made. In addition, Payee states the transaction is "in the best interests of my family." (Payee Decl. ¶6.) At Exhibit 5, however, he states he has no dependents. It is therefore not clear what "family" he is referring. Moreover, Payee states the purpose for the transfer is to "purchase a car, cover housing expenses and other living general expenses." But there is no information provided as to Payee's current living expenses, contributions from his "family" or why his \$3,800/month income is insufficient. More information is required about Payee's financial circumstances. The court further notes it cannot find the verified statement from Petitioner stating that all the conditions set forth in Sections 10136, 10137, and 10138 have been met. Such a statement is customarily attached to petitions such as this pursuant to Insurance Code section 10139. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice.
9.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> <i>2025-01489807</i>	Before the court is continued hearing on the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As more fully set forth below, the motion is GRANTED. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained.